SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Civil Appeal No. 1220 of 2021 (YEAR: 2021)

CORAM: U.U. LALIT, AJAY RASTOGI, ANIRUDDHA BOSE

Newtech Promoters and Developers Pvt. Ltd.
... Appellant(s) / Petitioner(s)
Versus
State of UP
... Respondent(s)

Acts Referred:	Real Estate (Regulation and Development) Act, 2016
Sections:	Section 3 RERA, Section 18 RERA, Section 40 RERA

JUDICIAL HEADNOTE & SUMMARY

Affirmed that RERA applies retroactively to ongoing real estate projects initiated before the Act, protecting homebuyers' statutory rights to refunds with interest.

RATIO DECIDENDI

The Court held that: Affirmed that RERA applies retroactively to ongoing real estate projects initiated before the Act, protecting homebuyers' statutory rights to refunds with interest. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in Newtech Promoters and Developers Pvt. Ltd. v. State of UP (Civil Appeal No. 1220 of 2021) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Real Estate (Regulation and Development) Act, 2016, particularly Section 3 RERA, Section 18 RERA, Section 40 RERA. Affirmed that RERA applies retroactively to ongoing real estate projects initiated before the Act, protecting homebuyers' statutory rights to refunds with interest.

OPERATIVE ORDER

ORDER: Decided